

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ vs BOMBAY PARTNERS V ONTARIO, LLC	MOTION TO DISMISS COMPLAINT

Tentative Ruling:

The motion to dismiss is granted. The proposed order is signed.

Analysis:

The failure to discover the true name of a Doe defendant is not a circumstance that renders that defendant not amenable to serve. There is no showing that Caterpillar could not be served had its identity been known. It is the failure to discover its identity in a timely fashion that prevented the plaintiff from serving Caterpillar in a timely fashion, and the statute is clear that such a failure to discover does not toll the three-year deadline. As subdivision (d) of section 583.240 states: "Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control"

2.

CASE #	CASE NAME	HEARING NAME
CVRI2300779	LARA RENDON vs TD TRANSPORT	MOTION TO SET ASIDE ORDER

Tentative Ruling:

The motion to set aside the order filed on 4-1-26 is denied.

Analysis:

The evidence is uncontradicted that the Notice of Settlement was filed by counsel for a plaintiff in one of the other consolidated actions rather than by counsel for plaintiff Khonesay Rachsingharn. The evidence that the Rachsingharn action has not been settled is also uncontradicted. Tarik J. Shoukeh represents that the action was settled, but that representation is made on information and belief, and thus is not admissible evidence. Significantly, Shoukeh offers no evidence either of a written settlement agreement in the Rachsingharn action or of a description of the consideration paid by the moving parties to settle the Rachsingharn action, evidence that would have been quite probative.

The motion appears to lack the candor owed by counsel to the Court.